

CITY OF ALEXANDRIA

BOARDS, COMMISSIONS, AND ADVISORY GROUPS

MEMBER HANDBOOK



EFFECTIVE JULY 1, 2024

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1. INTRODUCTION

The City of Alexandria encourages participation by members of the community to serve on Boards, Commissions, and Committees. These vital groups give Alexandria citizens with specific interest an opportunity to actively serve the community and participate in advancing this great city forward.

This handbook was prepared by City of Alexandria staff for members of the City of Alexandria Boards, Commissions, and Committees to inform them of the duties and responsibilities of a member to City Council appointed Boards, Commissions, Committees, and other Advisory Groups (hereafter referred to as Advisory Groups). The main website for the City of Alexandria (www.alexandriava.gov/Boards) contains a complete list and description of all City of Alexandria Advisory Groups, as well as links to other important information.

2. PURPOSE

The primary role of all Advisory Groups is to gather information, review specific concerns, and make recommendations to the City Council on matters within their scope of responsibility. Advisory Groups are also to promote public participation in determining City policies and program implementation.

3. AUTHORITY AND APPOINTMENTS

The majority of Advisory Group members are selected by the Alexandria City Council Members. Advisory Group member appointments are typically held at the first City Council meeting of each month, with the exception of July and August. Members are appointed to the Advisory Group through an application and appointment process that has been adopted by the City Council.

4. APPLICATION AND APPOINTMENT PROCESS

Advisory Group positions are open to all City of Alexandria residents. Vacancies are posted 21 days prior to Council consideration. Applications are received through the City's Advisory Groups website (www.alexandriava.gov/Boards). Applications are reviewed by the City Clerk's Office for completion and to ensure applicant meets the minimum qualifications for the position prior to submission for City Council consideration.

Advisory Groups contain a combination of members chosen by the City Council and members recommended by the state or board-specific organizations. For most Advisory Groups, unless expressly provided by law, applicants must reside in the city or 1) the person must be filling a position designated for a particular profession, 2) the person works in the city, and 3) a majority of the City Council grants a "residency waiver" at the time of appointment. Recipients of a waiver shall cease to be a member of the Advisory Group upon becoming a resident of any other jurisdiction or no longer working in the city. However, some Advisory Groups (e.g., Planning Commission, Board of Zoning Appeals) have slightly different qualifications for residency.

Once your application is deemed eligible for a vacancy, it is submitted for City Council consideration. Prior to consideration, members of City Council may reach out to you regarding your application. In addition, you may reach out to members of City Council to emphasize your desire to serve.

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City Council reviews the applications and make their appointments at the first City Council meeting of each month, with the exception of summer recess in July and August. All candidates are notified of the results. Applicants selected will receive a welcome packet and be contacted by the board staff for onboarding and meeting details.

Applications for candidates not selected will remain on file for 6 months, unless withdrawn by the applicant or City Council.

5. RESPONSIBILITIES AND ROLES OF MEMBERS

Members of the Alexandria community selected to participate in advancing this great city forward provides an opportunity for genuine public service. Although specific duties of each Advisory Group vary widely with the purpose for which they are formed, there are certain responsibilities that are expected to be observed:

- Treat Everyone with Respect and Courtesy
- Do Your Homework – Be Prepared and Be Familiar with the Docket
- Express Your Ideas and Opinions in an Open and Helpful Manner
- Be Respectful of Others' Time with Clear and Concise Comments or Questions
- Demonstrate Honesty and Integrity in Your Comments and Actions
- Focus on the Issues Before the Decision-Making Body – Avoid Personalizing Issues
- Listen and Let Others Express their Ideas and Opinions
- If a Decision is Made with which You Do Not Concur, Agree to Disagree and/or Use Appropriate Means of Civil and Civic recourse, and Move On

A. APPOINTMENT AS A MEMBER

Unless an appointment or reappointment is expressly vested by law in the courts or in some other body, all appointments shall be made by the City Council. Within 60 days of appointment by the City Council, all members are required by City Code to qualify by taking the oath either: (i) verbally before the city clerk, or other officer authorized to administer oaths or affirmations, or (ii) in writing on a form provided by the office of the city clerk and clerk of council.

B. BY-LAWS AND OTHER GOVERNING DOCUMENTS

Advisory Groups should maintain focus on the mission as articulated in the By-laws and ordinance or resolution that creates the group. Advisory Groups only have authority to undertake activities they are tasked with performing by the City Council. Groups should annually review the By-laws to determine if changes are required.

C. ANNUAL REPORTS

Boards are required to create and submit a report to the City Council each year within 60 days after the close of the fiscal year. Advisory Groups may add more information to their annual reports, but all annual reports are required to contain the following information:

- A list of all members of the Advisory Group.
- A description of the Advisory Group's most important activities during the reporting year.

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- Recommendations of the Advisory Group for improving its functions and duties, along with changes that should be made to other laws, policies, procedures, and programs (including recommendations for additional federal or state legislation) within the expertise of the Advisory Group.

After the annual report is submitted to City Council, it must be made available to the public for inspection and copying.

D. ATTENDANCE AND ABSENCES

Engagement and participation of Advisory Group members is crucial to the success of their group. The Chair is responsible for keeping a record of each member's attendance at meetings and forwarding a copy of the attendance record with the Annual Report to the City Clerk.

Advisory Group members are required to attend at least 75 percent of all meetings for the group on which they serve. Failure to attend at least 75 percent of all meeting for the group may result in removal by the City Council pursuant to City Code § 2-4-7.

The Chair of an Advisory Group, in their discretion, may excuse the absence of a member from a meeting or multiple meetings if they are informed within a reasonable time in advance by the absent member. These excused absences shall not be considered by the group Chair when preparing the attendance record, but they shall be noted as "excused absences" on the record.

E. OPEN MEETING REQUIREMENTS

By definition, meeting requirements must be met when more than two (or a quorum if less than three) Advisory Group members get together – formally or informally, in person or electronically – and public business (i.e., topics associated with the Advisory Group's work) is discussed or transacted among the members of the Advisory Group.

Public access to Advisory Group meetings is a statutory right of the public pursuant to FOIA. The following are relevant excerpts from FOIA that apply to Advisory Group meetings:

- Notice of a meeting must be posted at least 3 working days prior to the meeting.
- All meetings of public bodies, including all Advisory Groups to the City Council, are to be public, including meetings and work sessions during which no votes are cast or any decisions made. FOIA has limited exemptions from this requirement, see the Closed Meetings subsection below.
- At least one copy of all agenda packets and materials provided to members of the Advisory Group for a meeting shall be made available for the public at the same time such documents are furnished to the members of the Advisory Group.
- Minutes shall be taken in writing at all public meetings and must include the meeting date, location and attendees and at least a summary of matters discussed, and any votes taken. Such minutes are required to be publicly available.
- For meetings conducted through electronic communication means in accordance with Code of Virginia §§ 2.2-3708.2 or 2.2-3708.3, minutes shall include (i) the identity of the members of the public body who participated in the meeting through electronic communication means, (ii) the identity of the members of the public body who were physically assembled at one physical location, and (iii) the identity of the members of the public body who were not present at the location identified in clause

- (ii) but who monitored such meetings through electronic communication means.
- Any person may photograph, film, record, or otherwise reproduce any portion of a meeting required to be open. The Advisory Group conducting the meeting may adopt rules governing the placement and use of recording equipment to prevent interference with the proceedings.
- Voting by secret or written ballot in an open meeting is not allowed and is a violation of FOIA.

Note that certain gatherings of two or more members (or a quorum, if less than three), particularly those where no part of the purpose of the gathering is the discussion or transaction of public business, are not meetings subject to FOIA. However, members should consult with the City Clerk and City Attorney's Offices before attempting to gather in groups of more than two (or a quorum if less than three) without satisfying open meeting requirements.

F. CLOSED MEETINGS

Advisory Groups may close their publicly noticed meetings to the public only if they are discussing one of the topics expressly authorized by law including, among others:

- Specific personnel matters
- Disposition or acquisition of real property
- Prospective competitive procurements where a public meeting would compromise the City's bargaining position
- Consultation with legal counsel
- Terrorism preventive matters

Appropriate notice requirements must be met, and the body must adopt a motion specifying the statutory basis for the closed meeting as well as a certification after the closed session has been concluded. All closed meeting discussions are confidential and any actions to be taken based on the closed session must be done only in a reconvened public meeting following the closed meeting. The City Clerk and City Attorney's Offices should be consulted when an Advisory Group is considering a closed meeting.

G. QUORUM

No action or business shall take place without the presence of a quorum. Alternatively, other actions are permissible without the presence of a quorum provided the Advisory Group does not engage in the transaction of public business. Figure 1 below lists common actions that do or do not require a quorum.

Figure 1

Quorum Not Required	Quorum Required
- Call the meeting to order - Fix the time to which to adjourn - Adjourn - Recess - Try to obtain a quorum - Informal discussions - Allow citizens to speak	- Votes - Engage in discussions or receive presentations that could serve as the basis for an official decision of the public body - Discussion or transaction of public business

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A quorum consists of a majority of the voting members in the Advisory Group. A regular member that is not voting for whatever reason, such as a conflict of interest, shall still be considered when counting a quorum. Vacant positions shall not be considered for quorum.

H. VOTING

It is important that the voices and opinions of every member of an Advisory Group are heard. Therefore, all votes must be taken in public session and the votes of at least a majority of the Advisory Group are required to take any action that:

- Is administratively final at the Advisory Group level without a further appeal.
- May be appealed by the City Council or a court of competent jurisdiction.
- Is a part of a recommendation or proposal for action by City Council or any other City Board or Commission.

Note that the affirmative votes of a larger majority may be required by the Advisory Group's enabling legislation. Voting by secret or written ballot in an Open Meeting is not allowed and is a violation of FOIA. Additionally, note that members may not cast any votes until they have taken the oath or affirmation required in City Code § 2-4-7(g).

I. REMOTE PARTICIPATION IN MEETINGS BY INDIVIDUAL MEMBERS

Generally, participation in meetings through telephone, video, electronic, or other electronic means is not permitted under FOIA. However, public bodies may permit one or more of their members to participate in meetings remotely when (i) a quorum is physically assembled and (ii) the public body has adopted a policy, at least once annually, that complies with § 2.2-3708.3 of FOIA. A member who wishes to participate in a meeting through electronic means must be unable to attend the meeting due to a personal matter, a medical condition that prevents the member's physical attendance, a family member's medical condition that requires the member to provide care for such family member, or the member's principal residence is more than 60 miles from the meeting location. Participation by the absent member due to a personal matter is limited to two meetings or 25 percent of the meetings held by the Advisory Group per calendar year, whichever is greater. If a member is participating remotely in accordance with the electronic participation policy, they may participate in the meeting as if they were physically in attendance.

City Council adopted a resolution containing an electronic participation policy applicable to Advisory Groups as of July 1, 2024.

J. ALL-VIRTUAL PUBLIC MEETINGS

Certain public bodies (excluding City Council, Planning Commission, the Board of Architectural Review, the Board of Zoning Appeals, and any boards with authority to deny, revoke, or suspend a professional or occupational license) may also hold all-virtual meetings during which all members may participate remotely rather than being assembled in one physical location provided public access is also provided through electronic communication means. Prior to holding such all-virtual meetings, the public body must adopt a policy at least once annually that complies with § 2.2-3708.3 of FOIA. Additionally, an all-virtual meeting must comply with the following requirements:

- 1) The meeting notice shall indicate that the meeting will be all-virtual and a statement that the method by which the Advisory Group meets shall not be changed unless a new notice is advertised
- 2) Public access to all-virtual public meetings is provided via electronic communication means
- 3) The electronic communication means used allows the public to hear all members of the Advisory Group participating in the all-virtual public meeting and, when audio-visual technology is available, to see the members of the group as well. When audio-visual technology is available, an Advisory Group member shall, for purposes of a quorum, be considered absent from any portion of the meeting during which visual communication with the member is voluntarily disconnected or otherwise fails or during which audio communication involuntarily fails
- 4) A phone number or other live contact information is provided to alert the Advisory Group if the audio or video transmission of the meeting fails. The Advisory Group shall monitor the means of communication during the meeting and recess until public access is restored if the transmission fails for the public
- 5) A copy of the proposed agenda and all agenda packets and, unless exempt, all materials furnished to members of the Advisory Group for a meeting is made available to the public in electronic format at the same time that such materials are provided to members of the group
- 6) The public is afforded the opportunity to comment through electronic means, including by way of written comments, at those public meeting when public comment is customarily received
- 7) No more than two members of the Advisory Group are together in any one remote location unless the remote location is open to the public to physically access it
- 8) If a closed session is held during an all-virtual public meeting, transmission of the meeting to the public resumes before the Advisory Group votes to certify the closed meeting as required by § 2.2-3712(D)
- 9) The Advisory Group shall not convene an all-virtual meeting more than (i) two (2) meetings or (ii) 50% of the meetings held per calendar year rounded up to the next whole number, whichever is greater. The Advisory Group shall not hold consecutive all-virtual meetings
- 10) Minutes of all-virtual public meetings held by electronic communication means are taken as required by § 2.2-3707 and include the fact that the meeting was held by electronic communication means and the type of electronic communication means by which the meeting was held. If a member's participation from a remote location pursuant to this subsection is disapproved because such participation would violate the policy adopted pursuant to subsection D, such disapproval shall be recorded in the minutes with specificity.

Again, City Council adopted a resolution containing an electronic participation policy applicable to Advisory Groups as of July 1, 2024.

Pursuant to § 2.2-3708.2, public bodies may hold meetings without a quorum physically assembled when either the Governor has declared a state of emergency or the local public body has declared a local state of emergency.

Other than in compliance with the proceeding requirements, remote participation and all-virtual public meetings, including conference calls, skype, and other electronic means are not permitted.

K. MEETING AGENDAS

In addition to the work plan, the following items should be included in the meeting agenda:

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- July – Annual report and work plan draft review
- August – Annual review of By-laws, roles, & effective communication. Annual report and work plan approved and sent to the City Clerk’s office, appropriate City management, and other relevant Advisory Groups.

L. MEETING MINUTES

It is essential, and required by FOIA, to capture the discussion of and outcomes from all open meetings, whether of the full Advisory Group or of a subcommittee, to provide a clear record of activity and allow outside parties to follow the work of the group, and so that absent members may catch up with meetings they have missed.

- All meetings must comply with the legal guidelines of FOIA.
- Either the Staff Liaison or another designee should be identified to keep notes and create minutes or a detailed summary of information, conversations, and results.
- Minutes are the official record of the meeting and must be made publicly available, preferably on the web, following a vote of approval of the minutes. Minutes must include the date, time, location, and meeting attendees and at least a general summary of the discussion and any votes (show counts for vote outcome including abstentions and recusals).
- Portions of meetings may be taped using video equipment, tablets, or similar devices. Although these may be useful in helping members catch up to missed meetings or provide accessible public access to key presentations, they are not to be used as a replacement for the written minutes.

The minutes are a factual record of business. Do not include:

- Opinions or judgments: Leave out statements such as “a well-done report” or “a heated discussion.”
- Criticism or accolades: Commentary on members, good or bad, should not be included unless it takes the form of an official motion.
- Extended rehashing of reports: Just hit the highlights or key facts, particularly if a written report is attached.

M. ADVISORY GROUP RECOMMENDATIONS

Letters and other actions of the Advisory Group must be discussed and voted on in a public meeting. Drafts can be edited for style and clarity through email, but the substantive content of the document should be discussed and decided through a vote that takes place at a public meeting of the Advisory Group. Advisory Groups cannot make any decisions or take action through email, telephone calls, or outside of a public meeting. All communications from the Advisory Group should be signed by the Chair or their designee.

N. RECORDS REQUIREMENTS

All records of the Advisory Group, including written communication among Advisory Group members, are subject to the FOIA. This means that, should a member of the public ask to review all deliberations on a subject that the Advisory Group discussed, Advisory Group members are required to produce any records (e.g., emails, messages, notes) related to the topic. Prior to being released, the City Attorney’s Office reviews all documents to assure that documents responsive to the request – with redactions should they be necessary

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– are released within the required timeframe. All Advisory Group records must also be preserved based on the City’s record management policy and the Library of Virginia Retention schedule.

O. CONFLICTS OF INTEREST

The State and Local Government Conflict of Interests Act affects all persons elected or appointed to any governmental or advisory agency or group of the City of Alexandria government. The term "advisory agency" includes citizen Advisory Groups appointed to make non-binding recommendations to the Alexandria City Council or the City Manager.

No member may accept money or any other thing of value or take other advantages based upon his position as a member of the Advisory Group. Members cannot have a personal interest in a contract or transaction. If a member of an Advisory Group has concerns about whether they should participate in a transaction, they may contact the City Clerk or their staff liaison.

P. REQUIRED DISCLOSURE FORMS

As required by the State and Local Government Conflict of Interests Act, § 2.2-3113 et seq. of the Virginia Code or [§ 2-5-11](#) of the City of Alexandria Code, many Advisory Group members are required to file one or more of the following upon appointment and annually by the date set by the Virginia State Code with the Clerk to the City Council:

- Financial Disclosure Statement, or
- Statement of Economic Interest, or
- Disclosure of Real Estate Holdings.

Current members receive an annual reminder with the appropriate form from the Clerk to the City Council. Completed forms are due in the City Clerk’s Office by the enumerated deadline. Failure to file the appropriate form is a violation of State and City law and may result in the removal of the member from the Advisory Group.

Q. MEMBER REMOVAL

Members serve at the pleasure of City Council and may be removed from office by the affirmative votes of at least four members for any of the following reasons:

- Neglect of duty including, but not limited to, failure to carry out directives of city council, more than one violation of the Rules of Decorum for boards and commissions meetings established by the executive secretary, or a criminal conviction the results in a loss of confidence,
- Failure to complete the oath of office within 60 days of appointment in compliance with City Code § 2-4-7(g)(2),
- Failure to continue to meet qualifications for the position for which they were appointed,
- Failure to meet the annual 75 percent attendance requirement in compliance with City Code § 2-4-7(h),
- Failure to file annual financial disclosure statements, when required, in compliance with City Code § 2-5-11.

R. RESIGNATIONS

Any member choosing to resign from a position on an Advisory Group must submit their intention in writing to the city clerk. The required writing may be in physical or electronic form.

6. RULES OF DECORUM

A. CODE OF ETHICS

Recognizing that individuals who are appointed by City Council are viewed by the community as influential, they should display the highest levels of moral and ethical conduct, and any person serving on a City of Alexandria board, commission, or committee shall comply with the following Code of Ethics:

- 1) Uphold the laws and regulations of the Commonwealth of Virginia and the City of Alexandria, including the Code of Virginia, the Alexandria City Code, and the Charter of the City of Alexandria, and never intentionally violate them.
- 2) Give a full measure of service and effort to the position of trust for which guardianship has been granted, giving best thought and sincere effort in the performance of your duties.
- 3) Avoid adopting policies, engaging in activities, or supporting programs that discriminate against individuals on the basis of race, color, religion or creed, sex, national origin, age, or any other protected characteristic.
- 4) Comply with all provisions of the State and Local Conflict of Interests Act and Ethics in Public Procurement Act, including, but not limited to, those sections that regulate the solicitation and acceptance of money, gifts, or other things of value for services completed during the performance of your official duties.
- 5) When applicable, attend all Virginia Conflict of Interests Act, Freedom of Information Act, and Ethics in Public Procurement Act training sessions if required by your appointment.
- 6) Seek out legal counsel in the City Attorney's Office if you have any question about a potential conflict of interest.
- 7) Ensure the integrity of actions performed by boards, commissions, or committees by avoiding the disbursement of unfair privileges or special favors to anyone. You should never receive, for family members or yourself, favors of benefits or gifts under circumstances that might be interpreted by a reasonable person as influencing the performance of your governmental duties.

B. SCOPE OF DUTIES

- 1) Make no promises binding upon the duties of any office.
- 2) Do not use information learned confidentially during the performance of governmental duties to make a private profit for your family, employees, close family relations, yourself, or any business where you have a personal fiscal interest.
- 3) Report to the Alexandria City Clerk and City Attorney's Office any misconduct, neglect of duty, or corruption when discovered.
- 4) Comply with the provisions of the Virginia Freedom of Information Act, including, but not limited to:
 - Not discussing public business outside of an open meeting in a group of three or more members of your body.
 - Complying with the principle that the public's business should be conducted openly by following and observing the spirit and letter of the Virginia Freedom of Information Act, using closed sessions only to deal with matters properly exempted under the law.

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- Maintaining confidentiality of all matters discussed during closed session and personnel matters.
 - Using email or other means of written communication for official City business purposes in serving the interests of the City, and to correspond with our citizens in the course of normal operations.
- 5) When presenting individual positions and opinions, you shall purposefully state that you are not representing the City of Alexandria or your body, nor will you convey an inference that you do. You shall also not use the media or social media to criticize, question the integrity, or vilify the personal beliefs of citizens, City employees, or colleagues.
 - 6) When responding to the media, you must make a clear distinction between personal belief or opinion and a decision made by your body.
 - 7) Be an active listener, carefully considering all points of view and opinions.
 - 8) If appropriate, work in partnership with other political subdivisions, organizations, and governmental agencies to further the interest of the City of Alexandria.

C. STANDARDS OF CONDUCT

Recognizing that individuals holding public office are under continuous observation by interested City residents and the media, and recognizing that maintaining the dignity and integrity of public office is vital for maintaining high levels of public confidence in governmental institutions, every member of a board, commission, or committee shall adhere to the following Standards of Conduct:

1. Avoid the use of intimidating, abusive, or threatening gestures or language directed at citizens, colleagues, or City employees during the performance of public duties and public meetings.
2. Stay current on all tax obligations.
3. Adhere to the following Social Media Principles:

Members who use social media shall not:

- Post any materials of a sexually graphic nature;
 - Promote violence or suppression;
 - Post any materials that encourage or show illegal activity;
 - Use any speech containing obscene or sexually explicit language, images, acts, statements, or other forms of speech that ridicule, malign, disparage, or otherwise express bias against any race, any religion or any other protected class; and,
 - Use speech that could reasonably be considered as reckless.
4. Attend all scheduled meetings of your board, commission, or committee, resigning whenever personal circumstances preclude regular attendance.
 5. Make a diligent effort to be well prepared for every meeting.
 6. Avoid criticism or personal attacks on City employees or colleagues that are unrelated to the public business before your board, commission, or committee. Maintain an attitude of consideration and courtesy toward all City employees and colleagues during every deliberation and discussion.
 7. Refrain from the use of personal devices during meetings.
 8. Dress Code: During board, commission, and committee meetings, all members should dress appropriately for the business environment.
 9. Pursuant to City Code section 2-4-10, refrain from requesting staff assistance, or making an assignment to staff, relating to committee business, unless acting pursuant to committee action.

D. BEST PRACTICES FOR COMMUNICATING WITH THE MEDIA AND CITIZENS

1. When responding to questions from citizens or the media, you should:
 - Remind the listener that you do not speak for the entire board, commission, or committee;
 - Clarify your position on a specific item; and,
 - Not comment on closed session matters unless and until the item is discussed in an open session meeting.
2. Every member shall acknowledge that personnel matters must remain confidential and the board, commission, or committee has an obligation to protect individual privacy.
3. Members will concentrate on issues and avoid making public comments about City employees, individuals, fellow board, commission, or committee members, media representatives, or community residents. The City Manager should be the primary contact for City matters. When requested to give an interview, the member asked should contact the Office of Communications and Community Engagement upon confirmation of the interview and they will, in turn, contact the City Manager, Mayor and City Council to inform them of the subject matter of the interview. The member must provide the name of the outlet, the name of the report, the subject matter of interview/question, and the anticipated run/publish date. In addition, the staff liaison to that particular board, commission, or committee shall update the other members regarding the circumstances and substance of the interview as soon as practicable. This procedure does not prevent any member from responding to questions from the media.